

Messy / One-Sided Contract 1 - Services Agreement

This Services Agreement (this "Agreement") is made effective as of [EFFECTIVE DATE], by and between [CUSTOMER NAME] ("Company"), and [SERVICE PROVIDER NAME] ("Provider"), and applies to any work, services, deliverables, support, consulting, statements of work, change orders, email requests, verbal requests accepted by Company, or related items whether now existing or later requested by Company from time to time during the relationship.

Provider will provide all services requested by Company from time to time, including any additional or ancillary services that Company deems necessary or desirable for Provider to perform in connection with Company's business, and Provider acknowledges that time is of the essence for all such services and that Company's expectations, instructions, policies, manuals, and future directions will be binding whether or not attached to this Agreement. Provider will perform the Services to the highest industry standards as determined by Company in its sole discretion and will immediately redo, replace, or correct any portion of the Services or Deliverables that Company considers unacceptable for any reason or no reason.

Company may issue requests, directions, or modifications at any time, and any such request will automatically amend this Agreement and the scope, timeline, deliverables, staffing, acceptance criteria, service levels, locations, and fees, provided that Company will determine whether any fee adjustment is appropriate, and if Company does not approve a fee increase in writing signed only by Company, Provider will perform the changed work at no additional charge. Provider will not suspend performance for any dispute, including nonpayment, disagreement over scope, delays caused by Company, or force majeure events affecting Provider or its subcontractors.

Fees, if any, will be paid by Company when Company determines that the applicable Services have been fully performed to Company's satisfaction, and Company may withhold, offset, deduct, charge back, or delay any amounts for any actual or alleged breach, deficiency, customer complaint, internal concern, compliance issue, overbilling, underperformance, or anticipated losses. Any invoice not submitted within 5 days after the end of the month in which the Services were performed will be forever waived. Provider is responsible for all taxes, expenses, costs, insurance, permits, wages, benefits, travel, equipment, software, overhead, and any other amounts, whether or not specifically related to the Services.

All deliverables, work product, inventions, discoveries, developments, reports, documents, software, modifications, know-how, data, materials, concepts, ideas, and other items created, conceived, reduced to practice, authored, prepared, or delivered by or on behalf of Provider, whether alone or jointly, whether before, on, or after the date of this Agreement, and whether related or unrelated to the Services, will be the sole and exclusive property of Company from creation. To the extent any such items do not automatically vest in Company, Provider hereby irrevocably assigns, transfers, and conveys to Company all right, title, and interest worldwide in and to such items, including all intellectual property rights, and waives all moral rights and similar rights. Provider will execute any document requested by Company at any time to confirm, perfect, record, or enforce Company's rights, without additional compensation.

Provider represents, warrants, and covenants that the Services and all Deliverables will be error-free, uninterrupted, complete, merchantable, fit for Company's particular and changing purposes, compliant with all laws everywhere applicable, non-infringing, secure, virus-free, and suitable for immediate use in any jurisdiction where Company or its affiliates do business. Provider further represents that neither Provider nor any personnel have ever been investigated for misconduct, violated any policy of any customer, or engaged in any act that could, in Company's opinion, adversely affect Company's reputation. These representations and warranties are ongoing and deemed repeated daily.

Provider will indemnify, defend, and hold harmless Company, its affiliates, customers, suppliers, officers, directors, employees, agents, successors, assigns, and anyone claiming through any of them, from and against any and all claims, demands, actions, losses, liabilities, damages, judgments, penalties, fines, costs, and expenses of every kind, including attorneys' fees, arising out of or relating in any way to this Agreement, the Services, the Deliverables, Provider personnel, allegations, investigations, threatened claims, actual claims, breach, negligence, strict liability, willful misconduct, data loss, cybersecurity incidents, bodily injury, death, property damage, infringement, wage claims, tax claims, or Company's own negligence except to the extent finally determined by a non-appealable court to have resulted solely from Company's intentional fraud. Company will control the defense and settlement of any matter, and Provider may not settle any matter without Company's prior written consent, which may be withheld for any reason.

Company may terminate this Agreement, any statement of work, or any Services immediately for convenience, for cause, for no reason, or by ceasing to send work. Provider may not terminate this Agreement except with Company's prior written consent. Upon termination or expiration, Provider will promptly refund any amounts previously paid for Services not accepted by Company, deliver all work in progress, assist with transition for as long as Company requests at Provider's then-current rates or lower rates required by Company, and certify deletion of all Company information. The rights and obligations of Company will survive for so long as Company elects, and all obligations of Provider that by their nature should survive will survive permanently.

Provider will maintain in strict confidence all nonpublic information relating to Company, its affiliates, customers, business, operations, systems, pricing, security, personnel, and this Agreement, and may use such information solely for Company's benefit and for no other purpose. Provider may not disclose any such information to any person without Company's prior written consent. Company may disclose any information relating to this Agreement or Provider as Company deems appropriate. The existence and terms of this Agreement are Company confidential information.

Company's total liability arising out of or relating to this Agreement will not exceed the lesser of amounts actually paid by Company to Provider in the 1 month preceding the event giving rise to the claim or [MINIMAL LIABILITY AMOUNT], and Company will not be liable for any indirect, incidental, consequential, special, punitive, exemplary, reliance, or lost profit damages, regardless of theory and even if advised of the possibility of such damages. These limitations will not apply to amounts owed by Provider to Company.

Any dispute may be brought by Company in any court of competent jurisdiction selected by Company, and Provider irrevocably submits to such jurisdiction and waives any objection based on inconvenient forum, lack of personal jurisdiction, or otherwise. Company may also seek injunctive or equitable relief anywhere. This Agreement will be

governed by the laws selected by Company from time to time, without regard to conflicts principles.

This Agreement constitutes the entire agreement except for any policies, manuals, website terms, purchase orders, work orders, security requirements, and other documents issued by Company from time to time, all of which are incorporated by reference and will control in the event of conflict as determined by Company. No course of dealing or failure to enforce any right will limit any Company right. Provider may not assign this Agreement or subcontract any obligations without Company's consent. Company may assign this Agreement freely. Any provision found unenforceable will be reformed in Company's favor to the maximum extent permitted by law.